

Stereo.HCJDA 38.
Judgment Sheet
LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT

....

CIVIL REVISION NO.830-D of 2016

SYED IMTIAZ HUSSAIN (Deceased) Through his Legal Heirs etc.

Versus

MUHAMMAD HUSSAIN and 35 others

JUDGMENT

Date of hearing:	<u>24.06.2025</u>
Applicants by:	M/s Muhammad Amir Butt and Syed Ijaz Hussain Hamdani, Advocates.
Respondents No.1 to 21 & 24 to 32 by:	Khawaja Muhammad Asghar Farooq, Advocate.
Respondents No.22 & 23 by:	Raja Munir Ahmad, Advocate.
Respondents No.33 to 36:	Ex-parte.

MIRZA VIQAS RAUF, J. This revision application in terms of Section 115 of the Code of Civil Procedure (V of 1908) (hereinafter referred to as “C.P.C.”) originates from the suit for separate possession through partition instituted by the applicants against respondents before the learned Civil Judge, Chakwal with the assertions that parties to the suit are co-owners and it is still joint and not yet formally partitioned. Suit was ultimately decreed preliminary with the consent of both the sides on the basis of their statements that the suit property may be partitioned by keeping intact the respective possession of the parties by way of judgment dated 11th February, 2010. In pursuance to the preliminary decree local commission submitted his report, which was objected by both the sides but objections were turned down and final decree was passed on 23rd April, 2011. Feeling dissatisfied, respondents No.1 to 32 (hereinafter

referred to as “**respondents**”) preferred an appeal before learned Additional District Judge, Chakwal, which was accepted vide judgment and decree dated 20th June, 2016, hence this revision application.

2. Learned counsel for the applicants at the very outset submitted that appeal was not preferred against the decree and as such it was not tenable at all. He added that decree was though prepared during the pendency of the appeal by the orders of the appellate court but it was never brought on record by the **respondents** to meet with the requirements of Order XLI Rule 1 of the **C.P.C.** Learned counsel emphasized that even otherwise after preparation of the decree, the **respondents** never amended their appeal, so as to call in question the *vires* of decree. It is contended that appeal has wrongly been accepted by the appellate court and the impugned judgment is not tenable. In order to supplement his contentions, learned counsel placed reliance on NASIR KHAN versus ZAMIN SHAH and another (2019 CLC 741), SHAUKAT ALI versus MUHAMMAD SHARIF (2013 CLC 1558) and ABDUL MAJEED and 6 others versus Mst. HALEEMA and 18 others (1987 CLC 2331).

3. On the other hand, learned counsel for **respondents** submitted that since decree was not prepared by the trial court in pursuance to the final judgment, so there was no occasion for the **respondents** to append the decree with the appeal. Learned counsel contended that the decree was ultimately prepared by the trial court on the direction of the appellate court and on preparation of decree it was immediately made part of record. It is argued with vehemence that appellate court is vested with all the powers of trial court and though after making the decree as part of record no amendment was introduced in the appeal but the appellate court was vested with the power to mould the relief. It is contended that the **respondents** could not be made to suffer on account of act of court. Reliance is placed on MUHAMMAD FAROOQ and others versus JAVED KHAN and others (PLD 2022 Supreme Court 73), SHER and another versus BHAI KHAN and another (2008 CLC 232), JABAR KHAN versus AKHTAR HUSSAIN and others (2001

MLD 1624) and NOOR ALI and 3 others versus MUHAMMAD URIS and 11 others (2000 YLR 1564).

4. Heard. Record perused.

5. Parties to the suit are admittedly co-owners. Suit was initially decreed preliminary on the basis of statements of the parties that they have no objection on decreeing the suit provided their possession be kept intact. In furtherance thereof, local commission was appointed with the direction to visit the suit property and conduct the partition proceedings according to the possession of the parties and site plan (الف) submitted by the applicants. It was also observed that shares of the parties are already determined in the *Fard Jamabandi* and site plan (الف). The local commission was directed to submit report on the following points :-

- i. Whether the suit property is partitionable?
- ii. If yes, what is the mode of the partition?
- iii. What is the market value of the property?

In terms of above noted reference, local commission submitted his report. Both the sides being offended offered their objections to the report and initially while acceding the objections of the parties, report of local commission was set aside whereafter Syed Abid Hussain Zaidi, Advocate alongwith revenue officer was appointed as local commission. On submission of report by the commission subsequently appointed, the **respondents** submitted their objections but while discarding the objections, suit was finally decreed by way of judgment dated 23rd April, 2011. For the purpose of refence relevant part of the judgment is reproduced below :-

“.....I don't see any material objections raised by the parties. Therefore, objections are turned down. The report of local commissioner Syed Abid Zaidi Adv. and Revenue Officer are accepted. The mode of partition suggested by the learned local commissioners are accepted and finalized by this court. Therefore, the suit of the plaintiffs is hereby finally decreed. The reports of local commissioners be made the part of final decreed. Decree sheet be drawn on the requisite stamp paper which will be supplied by the plaintiffs in accordance with the value of the suit property suggested by the local commissioners. No order as to be costs.....”

(Underlining supplied for emphasis)

The **respondents** being aggrieved preferred an appeal against the judgment dated 23rd April, 2011, which was dismissed by learned Additional District Judge, Chakwal vide judgment dated 6th June, 2013 on the ground that decree sheet has not been prepared and **respondents** as well as applicants are not ready to submit stamp duty. Following the mandate, the applicants themselves moved an application to the trial court for preparation of decree on 9th February, 2015 which was allowed on 14th February, 2015 and resultantly, instrument of partition was prepared on the same day. The appeal was presented by the **respondents** on 5th March, 2015 but that too was not accompanying the decree sheet as it was prepared on 21st March, 2016.

6. In the above backdrop, it is main contention of learned counsel for the applicants that appeal was not maintainable at all and it was barred by time as well. To this effect, it is observed that Section 96 and Order XLI Rule 1 of the **C.P.C.** are the relevant provisions, which are reproduced below :-

“96. Appeal from original decree– (1) Save where otherwise expressly provided in the body of this Code or by any other law for the time being in force, an appeal shall lie from every decree passed by any Court exercising original jurisdiction to the Court authorized to hear appeals from the decisions of such Court and the Court shall decide the appeal within sixty days from the date of first appearance of the respondent in appeal.
(2) An appeal may lie from an original decree passed ex parte.
(3) No appeal shall lie from a decree passed by the Court with consent of parties.”

“1. Form of appeal. What to accompany memorandum.--
(1) Every appeal shall be preferred in the form of a memorandum signed by the appellant or his pleader and presented to the Court or to such officer as it appoints in this behalf. The memorandum shall be accompanied by a copy of the decree appealed from and (unless the Appellate Court dispenses therewith) of the judgment on which it is founded.
Contents of memorandum.--(2) The memorandum shall set forth, concisely and under distinct heads, the grounds of objection to the decree appealed from without any argument or narrative; and such grounds shall be numbered consecutively.”

(Underlining supplied for emphasis)

From the joint reading of the above referred provisions of law, it clearly manifests that appeal in terms thereof is only competent against the decree and not the judgment. It is also obvious therefrom that an appellate court is though competent to dispense with the production of copy of judgment but not the decree, which is *sine qua non* for preferring an appeal.

7. In the above perspective when case law cited by learned counsel for the applicants in support of his contentions is examined it appears that in all the cases decree sheet was though prepared by the trial court and it was ready to be made part of appeal but not appended by the appellant on account of one reason or the other mentioned therein and thus it was held that in absence of decree appeal is not maintainable. There can be no exception to this proposition of law but facts in the present case are entirely different. It is an admitted position on the record that the suit was finally decreed vide judgment dated 23rd April, 2011 with the observation that decree sheet be drawn on the requisite stamp paper, which will be supplied by the plaintiffs/applicants in accordance with the value of the suit property suggested by the local commissioners. The applicants never provided the requisite stamp papers, enabling the trial court to prepare the instrument of partition and the decree sheet.

8. A wade through the record reveals that the applicants for the first time moved an application for submission of stamp duty and preparation of decree sheet on 9th February 2015, which was allowed vide order dated 14th February 2015 but even then the decree sheet was not prepared. The applicants, however, moved an application for dismissal of appeal which was decided vide order dated 19th January, 2016 with the following observations:-

“11. Respondents No.1 & 2 of appeal who were plaintiffs in the suit gave application for summoning of decided file dated 23.04.2011 and for submission of stamp duty for preparation of final decree sheet on 09.02.2015. On this application, original record was summoned. On 14.02.2015, learned trial Court in a separate order, allowed the application for submission of stamp duty and prepared instrument of partition. Certified copies of instrument of partition are also annexed with appeal. This instrument of partition is prepared on stamp paper. However, no decree sheet in accordance with

Order 20 Rule 6 & 7 CPC and on the prescribed performa of Appendix-D was prepared by learned trial Court. Relying on citation presented by learned counsel for appellants 2001 MLD 1624 where it is held that when decree sheet was not prepared by trial Court, appellate Court should keep the appeal pending and direct trial Court to prepare the decree sheet or direct the appellant to apply to the trial Court for preparation thereof. In the light of this citation, learned trial Court is directed to prepare the decree sheet on the prescribed performa as provided in Order 20 Rule 6 & 7 CPC and Appendix-D. Appellants are directed to produce certified copy of decree sheet in appeal. The decree sheet has not been prepared till today, therefore, appeal cannot be considered to be time barred as limitation will run from the date of preparation of decree sheet. The objection with regard to maintainability is partially accepted to the extent of preparation of decree sheet whereas remaining objections are turned down.”

In pursuance to the above, trial court prepared the decree sheet on 21st March, 2016, which was accordingly made part of record.

9. In somewhat similar facts and circumstances in the case of JABAR KHAN versus AKHTAR HUSSAIN and others (2001 MLD 1624), this Court held as under:-

“It is axiomatic that the appeal is preferred only against the decree and not the judgment/order. Since no decree sheet had been prepared in the instant case, therefore, it could not be successfully maintained that the time limited for filing of appeal had begun to run against the appellant. Respectfully following the rule laid down in the case of "Sher Muhammad v. Muhammad Khan and another" noted supra that in such an eventuality, the Court should keep the appeal pending and direct the lower Court to prepare the decree or direct the appellant to apply to the lower Court for the preparation thereof, whereafter the said decree is brought on the record and then only the appeal is heard and decided. I am persuaded to hold that the time limited for the appeal had not begun to run for the decree sheet itself was not prepared, therefore, there was no question of appeal of being barred by time. In the circumstances the learned Appellate Court has proceeded with material irregularity amounting to illegality in the exercise of its jurisdiction while dismissing the appeal of the petitioner.

5. In result, this revision is accepted, the order, dated 5-1-2000 dismissing the appeal is set aside, resultantly, the said appeal shall be deemed to be pending before the learned Appellate Court who shall proceed to decide the same on merits. There shall, however, be no order as to costs.”

Reference to the above effect can also be made to SHER and another versus BHAI KHAN and another (2008 CLC 232) and NOOR ALI and 3 others versus MUHAMMAD URIS and 11 others (2000 YLR 1564).

10. It is an oft repeated principle of law that no party can be made to suffer on account of any act or omission of Court. Preparation of decree was the function of court and its ministerial staff, which was subject to supply of stamp duty by the applicants. There was no fault of **respondents** in preparation of decree. Had there been any peccadillo on the part of **respondents** it cannot be made basis to penalize them in the shape of dismissal of their appeal. This well-known principle is founded on maxim “*actus curiae neminem gravabit*” (an act of the court shall prejudice no man). A litigant cannot be taxed, much less penalized of the act or omission of the court. Reference to this effect can be made to MUHAMMAD IJAZ and another versus MUHAMMAD SHAFI through L.Rs. (2016 SCMR 834) and Malik HADAYAT ULLAH AND 2 OTHERS versus MURAD ALI KHAN (PLD 1972 Supreme Court 69).

11. So far contention of learned counsel for the applicants that the **respondents** since did not question the decree in their appeal, so it cannot be set aside; suffice to observe that decree sheet was prepared during the pendency of the appeal, so the appellate court was vested with the power to mould the relief for meeting the ends of justice. Guidance to this effect can be sought from MUHAMMAD FAROOQ and others versus JAVED KHAN and others (PLD 2022 Supreme Court 73).

12. This application is though arising out of divergent views of the courts below as the conclusion are contrary to each other but this Court, while exercising revisional jurisdiction is supposed to make comparative analysis of both the judgments in order to determine their validity on the touchstones of Section 115 of the C.P.C. It is cardinal principle of law that in the matter of giving preference to the judgments of lower courts, while analyzing the same in exercise of revisional jurisdiction, the preference and regard is always given to the findings of the appellate court, unless those are suffering with any legal infirmity or material irregularity. Reference in this respect, if needed can safely be made to the case of MUHAMMAD NAWAZ through L.Rs versus Haji MUHAMMAD BARAN KHAN through L.Rs. and others (2013 SCMR 1300). Relevant extract from the same is reproduced herein below:-

“12.....We have also taken into consideration the judgment of the Appellate Court which is based on proper appraisal of evidence on record and the findings of the Appellate Court are to be preferred as it has been held by this Court in the cases of Madan Gopal and others vs Maran Bepari and others (PLD 1969 SC 617) that “If the findings of fact reached by the first appellate Court is at variance with that of the trial Court, the former will ordinarily prevail, although it would not possess the same value or sanctity as a concurrent finding.” This view also finds support from the cases of Muhammad Shafi and others vs. Sultan Mahmood and others (2010 SCMR 827).....”

The above view also finds support from the cases of AMJAD IKRAM versus Mst. ASIYA KAUSAR and 2 others (2015 SCMR 1) and MUHAMMAD HAFEEZ and another versus DISTRICT JUDGE, KARACHI EAST and another (2008 SCMR 398).

13. After having a comparative analysis of both the judgments, I am of the candid and firm view that the learned Additional District Judge, Chakwal has rightly interfered with the judgment passed by the learned Civil Judge, Chakwal. The applicants have failed to point out any illegality or material irregularity in the impugned judgment, warranting interference by this Court in exercise of revisional jurisdiction so as to set at naught the impugned judgment. The instant application thus fails and is **dismissed** with no order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

Dictated
03.09.2025

Signed
08.09.2025

APPROVED FOR REPORTING

JUDGE

Announced in open Court on **08.09.2025.**

JUDGE